

1 **SENATE FLOOR VERSION**

2 April 24, 2025

3 **AS AMENDED**

4 ENGROSSED HOUSE

5 BILL NO. 2837

6 By: Burns of the House

7 and

8 Coleman of the Senate

9 An Act relating to medical marijuana; amending
10 Section 3, Chapter 328, O.S.L. 2022, as amended by
11 Section 1, Chapter 415, O.S.L. 2024 (63 O.S. Supp.
12 2024, Section 427.14b), which relates to the Oklahoma
13 Medical Marijuana and Patient Protection Act;
14 directing the Authority to issue credentials to
15 employees who submit certain documentation; requiring
16 medical marijuana business employees to submit proof
17 of completion of educational training; requiring
18 employees to annually complete educational training;
19 mandating submission of proof of completion of
20 educational training in order to receive credential;
21 providing list of topics to be included in training;
22 and providing an effective date.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. AMENDATORY Section 3, Chapter 328, O.S.L.
2022, as amended by Section 1, Chapter 415, O.S.L. 2024 (63 O.S.
Supp. 2024, Section 427.14b), is amended to read as follows:

Section 427.14b. A. Beginning January 1, 2024, the Oklahoma
Medical Marijuana Authority shall require employees of a medical

1 marijuana business licensee to apply for and receive a credential
2 authorizing the employee to work in a licensed medical marijuana
3 business.

4 B. The Authority may contract with one or more third-party
5 vendors to provide the credentialing services necessary to carry out
6 the provisions of this section.

7 C. The Authority shall determine the services to be provided by
8 such third-party vendor and shall establish costs and prices. If
9 contracted for credentialing services, a third-party vendor shall on
10 behalf of the Authority conduct the background checks and verify
11 eligibility ~~and suitability~~ for any employees of a medical marijuana
12 business license holder to obtain a credential.

13 D. Upon successful completion ~~by the third-party vendor~~ of the
14 national fingerprint-based background check conducted by the
15 Oklahoma State Bureau of Investigation within thirty (30) days prior
16 to the application, completion of the educational training required
17 pursuant to the provisions of this section, and verification of
18 eligibility ~~and suitability~~ for an employee, the ~~third-party vendor~~
19 Authority shall issue a credential to the employee. The applicant
20 shall submit proof of completion of the required educational
21 training in the credential application, and the results of
22 background checks and verifications shall be provided to the
23 Authority by the third-party vendor.

1 E. Beginning **January 1, 2027**, in order to receive an employee
2 credential, all employees of a licensed medical marijuana business
3 shall annually complete an educational training course provided by
4 or approved by the Authority. The employee shall submit proof of
5 completion of the required educational training in order to receive
6 an employee credential. Such training may include an overview of
7 state statutes and administrative rules, patient privacy
8 requirements, and the safe handling and storage of medical
9 marijuana.

10 F. If the third-party vendor determines that an employee of a
11 medical marijuana business holder does not meet the minimum
12 statutory requirements for a credential, the applicant or employee
13 shall have no recourse against the third-party vendor but may appeal
14 such adverse determination to the Authority.

15 ~~F.~~ G. The third-party vendor shall not be civilly liable to an
16 applicant, licensee, or employee of a licensee for any acts taken in
17 good-faith compliance with the provisions of Section 420 et seq. of
18 this title and the Oklahoma Medical Marijuana and Patient Protection
19 Act and the rules promulgated by the Oklahoma Medical Marijuana
20 Authority.

21 ~~G.~~ H. 1. The Authority shall review the medical marijuana
22 credential application; approve, reject, or deny the application;
23 and send the approval, rejection, or denial letter to the applicant
24

1 by the same method in which the application was submitted to the
2 Authority.

3 2. Each approved applicant shall be issued a credential, which
4 shall act as proof of his or her approved status, to be worn or
5 displayed during the ~~employee's~~ hours of work of the employee.

6 Rejection and denial letters shall provide a reason for the
7 rejection or denial. Applications may only be rejected or denied
8 for failure to meet the standards set forth in the provisions of the
9 Oklahoma Medical Marijuana and Patient Protection Act or rules
10 promulgated by the Executive Director. If an application is
11 rejected for failure to provide required information, the applicant
12 shall have thirty (30) days to submit the required information for
13 reconsideration. Unless the Authority determines otherwise, an
14 application that has been resubmitted but is still incomplete or
15 contains errors that are not clerical or typographical in nature
16 shall be denied.

17 ~~H.~~ I. The Executive Director of the Authority may promulgate
18 rules to implement the provisions of this section.

19 SECTION 2. This act shall become effective November 1, 2025.

20 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
21 April 24, 2025 - DO PASS AS AMENDED
22
23
24